STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

At a session of the Public Service Commission held in the City of Albany on March 14, 2024

COMMISSIONERS PRESENT:

Rory M. Christian, Chair
Diane X. Burman
James S. Alesi
John B. Howard
David J. Valesky
John B. Maggiore

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

ORDER ON EXTENSION OF MAXIMUM SUSPENSION PERIOD OF MAJOR RATE FILINGS

(Issued and Effective March 15, 2024)

BY THE COMMISSION:

INTRODUCTION

On April 28, 2023, The Brooklyn Union Gas Company d/b/a National Grid NY (KEDNY) and KeySpan Gas East Corporation d/b/a National Grid (KEDLI) (collectively, the Companies) filed amendments to their tariff schedules, P.S.C. No. 12 – Gas, and P.S.C. No. 1 - Gas, respectively, to increase their annual gas delivery revenues for the twelve months ending March 31, 2025, or the Rate Year.

KEDNY requested an increase in annual gas delivery revenues of approximately $414 million (28 percent increase in

annual gas delivery revenues, or 17 percent in total revenues) for the Rate Year. The requested increase in gas delivery revenues results in an average monthly bill increase of about $30.95 (26.1 percent on the delivery bill or 17.2 percent on the total bill) for an average residential heating customer.

KEDLI requested an increase in annual gas delivery revenues of approximately $228 million (24 percent increase in delivery revenues, or 14 percent increase in total revenues) for the Rate Year. The requested increase in gas delivery revenues results in an average monthly bill increase of about $28.52 (25.1 percent on the delivery bill or 16.3 percent on the total bill) for an average residential heating customer.

By Notices issued May 10, 2023, and September 6, 2023, the Secretary to the Commission, pursuant to authority delegated to her,[1] suspended the captioned proceedings through March 31, 2024, unless otherwise ordered by the Commission. By this Order, the Commission extends the suspension of the above-captioned proceeding through August 31, 2024.

DISCUSSION AND CONCLUSION

By letters dated September 27, 2023, December 7, 2023, January 18, 2024, and February 16, 2024, KEDNY and KEDLI filed their consent to extend the maximum suspension period of these proceedings, ultimately through August 31, 2024. The Companies requested the extension to provide additional time for parties to continue settlement negotiations in these proceedings. The requests are subject to a "make whole" provision for the period beginning April 1, 2024, through August 31, 2024, that would keep the Companies and their customers in the same financial

[1] Case 09-M-0207, Delegation of Authority to the Secretary Concerning Tariff Filing Suspensions, Order Delegating Authority (issued September 18, 2009).

position as they would have been absent the extension. KEDNY's and KEDLI's letters stated it understands "make whole" to mean that the Companies would recover or refund any revenue under-collections or over-collections, respectively, including interest, resulting from the extended suspension period. KEDNY and KEDLI would calculate any revenue adjustments as the difference between sales revenue the Companies would have billed at new rates during the extension of the suspension period and the same level of sales revenues at current rates. The revenue adjustments would include all applicable surcharges and carrying charges and would be subject to reconciliation in accordance with all applicable adjustment mechanisms. Financial true-up targets established in the Commission's order resolving the rate filings in these proceedings, as well as depreciation and amortization expense, would be applied to the extension of the suspension period. All accounting/ratemaking would be pursuant to the new rate plan and be retroactive to April 1, 2024.

To facilitate the orderly conduct of these proceedings, the effective date of the tariff leaves filed by the Companies is further extended through August 31, 2024, unless otherwise ordered by the Commission.

The Commission orders:

1. The operation of the matters suspended by the Notices issued May 10, 2023, and September 6, 2023, in these proceedings, is further suspended and the use of the rates, charges, rules and regulations stated in said Notices be further extended through August 31, 2024, unless otherwise ordered by the Commission.

2. The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid are directed to file with the Commission, on not less than one day's

notice, on or before March 27, 2024, consecutively numbered supplements announcing the extension of the suspension period of the suspended amendments listed in the Appendix of this Order.

3. The Brooklyn Union Gas Company d/b/a National Grid NY and KeySpan Gas East Corporation d/b/a National Grid shall be made whole, as defined in this Order, for the period between April 1, 2024, and August 31, 2024.

4. These proceedings are continued.

By the Commission,

(SIGNED) MICHELLE L. PHILLIPS
Secretary

SUBJECT: Filing by THE BROOKLYN UNION GAS COMPANY
D/B/A NATIONAL GRID

Amendments to Schedule P.S.C. No. 12 – Gas

Original Leaf No. 138.55.7.1
First Revised Leaves Nos. 93.1, 138.55.2.1, 138.55.5, 427.34.2
Second Revised Leaves Nos. 79.1.1, 138.55.3, 138.55.4
Third Revised Leaves Nos. 7.1, 138.55.2, 427.12
Fourth Revised Leaves Nos. 64, 79.6.2, 91, 427.34.1
Fifth Revised Leaves Nos. 79.6.1, 79.9, 79.9.1
Sixth Revised Leaves Nos. 79.5, 79.6, 79.11, 427.34
Seventh Revised Leaves Nos. 79.7, 79.8,
Eighth Revised Leaves Nos. 55, 114.1, 114.3, 138.53, 427.7
Ninth Revised Leaves Nos. 55.2, 427.4
Tenth Revised Leaves Nos. 79.12, 114.2, 138.56, 427.28, 427.29
Eleventh Revised Leaves Nos. 40, 95, 138.50.1,
Twelfth Revised Leaves Nos. 35, 79.3, 138.54, 158.1
Thirteenth Revised Leaves Nos. 108, 138.52
Fourteenth Revised Leaves Nos. 138.52, 168
Fifteenth Revised Leaf No. 164
Sixteenth Revised Leaf No. 79.2
Seventeenth Revised Leaves Nos. 79.2, 372
Eighteenth Revised Leaf No. 229
Nineteenth Revised Leaf No. 172
Twentieth Revised Leaf No. 373
Twenty-First Revised Leaf No. 72
Twenty-Second Revised Leaves Nos. 73, 171
Twenty-Third Revised Leaves Nos. 69, 138.49
Twenty-Fourth Revised Leaves Nos. 67, 81
Twenty-Fifth Revised Leaf No. 156
Twenty-Sixth Revised Leaves Nos. 163, 167
Twenty-Eighth Revised Leaves Nos. 159, 340
Twenty-Ninth Revised Leaves Nos. 140, 144, 160
Thirtieth Revised Leaf No. 339
Thirty-First Revised Leaf No. 341

SUBJECT: Filing by KEYSPAN GAS EAST CORPORATION
D/B/A NATIONAL GRID

Amendments to Schedule P.S.C. No. 1 – Gas

Original Leaf No. 119.52.10
First Revised Leaves Nos. 69.1.1, 119.52.5.1, 119.52.7
Second Revised Leaves Nos. 15.3, 119.52.6, 219.1
Third Revised Leaves Nos. 79.3.1, 119.52.5, 194
Fourth Revised Leaf No. 189
Fifth Revised Leaves Nos. 45, 66, 73.1.1, 231
Sixth Revised Leaf No. 219
Seventh Revised Leaves Nos. 6.1, 50.1, 62,72.2, 119.50.1, 119.52.1
Eighth Revised Leaf No. 186
Ninth Revised Leaves Nos. 63, 73, 78,79.2.3, 122.1
Tenth Revised Leaf No. 73.2,
Eleventh Revised Leaves Nos. 63.1, 119.51, 119.52.2
Twelfth Revised Leaves Nos. 14.1, 17.1, 79.2, 215, 216
Thirteenth Revised Leaves Nos. 69.1, 75
Fourteenth Revised Leaves Nos. 72.1, 119.52, 137.1
Fifteenth Revised Leaves Nos. 119.53, 162, 211
Sixteenth Revised Leaves Nos. 128, 213
Eighteenth Revised Leaves Nos. 119.49, 122.2, 122.3
Nineteenth Revised Leaves Nos. 125, 127
Twentieth Revised Leaf No. 124
Twenty-First Revised Leaf No. 122
Twenty-Second Revised Leaf No. 121
Twenty-Fifth Revised Leaves Nos. 14, 72
Twenty-Eighth Revised Leaves Nos. 137, 138